

16. S-CV-0054631 Ptak, Crystal v. Thomas, Kira Elena

Counsel is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Be Relieved as Counsel

Counsel Leah Kestrel Finke's unopposed motion to be relieved as counsel for plaintiffs Crystal Ptak and Oliver Jouin is denied without prejudice. Counsel submitted a notice of motion, an attached memorandum of points and authorities, a declaration of counsel in support thereof, and a proposed order. However, these documents were not on Judicial Council forms MC-051, MC-052, and MC-053, which are mandatory Judicial Council forms.

17. S-CV-0055435 Jacobs, Adam v. Ameen, Niran

Motion to Compel

Plaintiff moves to compel defendant Anwar Ameen to serve verified, complete, and Code-compliant responses to plaintiff's requests for production of documents, set one, numbers 1 through 8. (Code Civ. Proc., § 2031.300.) Plaintiff also requests monetary sanctions of \$1,060. Defendant opposes the motion and presents evidence that defendant served verified amended responses on March 18, 2026 and verified second amended responses on March 31, 2026. Both of these supplemental responses were after the motion was filed but before defendant's time to oppose the motion had passed. Plaintiff acknowledges receipt of both sets of verified responses in his reply. Accordingly, the motion to compel responses is denied as moot. Plaintiff's request for monetary sanctions is likewise denied.

Motion for Sanctions

Plaintiff moves for an order imposing sanctions under Code of Civil Procedure section 128.7 and 128.5 against defendant Anwar Ameen and defense counsel Owais M. Bari, arguing that defendant's opposition to the motion to strike answer and supporting documents filed February 256, 2026 was for an improper purpose. Defendants oppose the motion.

Code of Civil Procedure section 128.5(a) allows the court to order a party, the party's attorney, or both to pay reasonable expenses, including attorney's fees, incurred as a result of bad faith actions or tactics that are frivolous or solely intended to cause unnecessary delay. "Actions or tactics" include the making or opposing of motions. (Code Civ. Proc., § 128.5, subd. (b)(1).) "Frivolous" is defined as "totally and completely without merit or for the sole purpose of harassing an opposing party." (Code Civ. Proc. § 128.5, subd. (b)(2).) Sanctions under Code of Civil Procedure section 128.5 require compliance with the Safe Harbor Provision, which provides a motion for sanctions "shall not be filed with or presented to the court, unless 21 days after the service of the motion